Who’s who in strata

Understand the roles of the owners corporation and strata committee, strata manager and building manager.

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Key information

- If you own property in the strata complex (scheme), you are part of its owners corporation.
- At each annual general meeting, the owners corporation will elect people to sit on the strata committee, which can make smaller, day-to-day decisions for them.
- A strata manager, building manager or both, can be hired to help run the scheme.

Did you know?

Owners corporation

The owners corporation (previously called a ‘body corporate’) is made up of all the owners in a strata scheme.

When you buy a property in a strata scheme, you automatically become part of the owners corporation. If you sell the property you own, you are no longer part of the owners corporation.

What decisions need owners corporation approval?

The owners corporation makes decisions and manages the overall scheme. This includes:

- finances
- insurance
- record keeping and executing documents
- repairing and maintaining common property
- by-laws
- strata meetings
- hiring a strata manager
- hiring a building manager
- following all laws about planning, building, safety, and workers.

There are laws and processes to follow for each of these jobs.

A **strata committee** or **strata manager** can also help with some of these jobs.

Strata committee

> **How do I contact the strata committee?**
>
> If you are an owner, an easy way is to show up to the next annual general meeting (AGM). All owners must be notified in advance when an AGM is happening.
>
> You can get those details from your annual levies paperwork. These are sent by a member strata committee on behalf of the owners corporation.
>
> If you can't wait until the next AGM, or don't have any levies paperwork, contact the **strata manager**. If you don't know the strata manager, the **strata roll (/housing-and-construction/strata/serving-on-a-committee/record-keeping-requirements#toc-strata-roll)** will have the strata manager's name and contact details.
>
> If your strata does not have a strata manager, the **strata roll (/housing-and-construction/strata/serving-on-a-committee/record-keeping-requirements#toc-strata-roll)** will still have an address to send correspondence. Use that address to make contact.
>
> If that fails, maybe take a walk around your complex and ask some of the owner-occupiers.

What is a strata committee?

A strata committee (previously called an 'executive committee') is a group of people that the owners corporation elects to help it make decisions for the scheme.

What decisions can the strata committee make?

A strata committee helps the owners corporation make decisions about the strata scheme.

The owners corporation chooses exactly what the strata committee can decide on. The owners corporation can also overrule any decisions the strata committee makes.

A strata committee can be helped in these jobs by a **strata manager.**

Most schemes give their strata committee the power make decisions for things like:

- spending for the day-to-day running of the scheme (e.g. hiring repairers, arranging insurance)

- approving applications under a by-law of the scheme (e.g. approving renovation applications)
- issuing a notice to comply with a by-law.

Who makes up a strata committee?

The owners corporation elects the strata committee at each annual general meeting (AGM).

There can be one to nine people on the committee. The owners corporation decides the total number, which cannot be more than nine.

If you live in a two-lot scheme, the strata committee must have at least two members (one from each property). If you live in a scheme with more than 100 properties, the strata committee must have at least three members.

Who can join a strata committee?

Owners can nominate one person for election for each property they own in the scheme.

You can nominate yourself, another owner or someone who doesn't own a property. This might be a tenant or the **tenant representative**.

You cannot join or be nominated for the strata committee if you are:

- the building manager
- an agent who leases any property in the strata scheme to tenants
- someone connected to the original owner (developer) or building manager of the scheme, unless you disclose this in writing before election
- an owner who owes money to the scheme at the time of the AGM.

Office-bearer jobs

Strata committee members must also choose one or more people for the 'office bearer' jobs:

Chairperson: runs meetings and oversees administration

Secretary: arranges meetings, prepares and gives out meeting agendas and minutes, updates the strata roll, issues notices, and does other administration including correspondence

Treasurer: keeps accounting records and issues **levy (/housing-and-construction/strata/living/levies-finances-insurance#toc-levies)** notices

Electing people with financial skills

It's best to have a person on the strata committee who knows how to manage finances.

You should think about this when voting for strata committee members.

Tenant representative

In schemes where at least half of the properties are lived in by tenants, the tenants can nominate a tenant representative. They will become part of the strata committee.

The tenant representative can:

- get a copy of the agenda for all strata committee meetings
- attend and speak at strata committee meetings.

The tenant representative can't vote at meetings and can be asked to leave when finances are discussed.

Removing the strata committee

A new strata committee is elected at each AGM. Previous strata committee members may stand for re-election.

The **owners corporation** can remove one or more members of the strata committee by a special resolution at a general meeting.

The NSW Civil and Administrative Tribunal (the Tribunal) can also remove a strata committee or strata committee member, if they find that they:

- didn't follow NSW strata laws
- didn't exercise due care or diligence, or
- engaged in serious misconduct.

Replacing a strata committee member

If a member of the strata committee leaves their position or leaves the scheme, the committee can choose someone to fill their job. The new person must be eligible to be on the committee.

If a strata committee member can't attend a meeting, they can choose another committee member or owner to go instead, if the strata committee agrees. This person is called an 'acting' member.

Strata managers

> **How do I find out who my strata manager is?**
>
> If you're an owner, you can get those details from your strata committee. If you don't know who's on the strata committee, your levies paperwork will have contact details.
>
> If you don't know anyone on the strata committee, and don't have any paperwork, the **strata roll (/housing-and-construction/strata/serving-on-a-committee/record-keeping-requirements#toc-strata-roll)** will have the strata manager's name and contact details.
>
> If you're a prospective buyer or tenant, speak to the real estate agent or landlord. They will have information on who is the strata manager.
>
> If that fails, maybe take a walk around your complex and ask some of the owner-occupiers.

What does a strata manager do?

A strata manager (also known as a strata managing agent) helps the owners corporation and/or strata committee with the running of the strata scheme.

The owners corporation can choose which jobs to give to a strata manager. These jobs could include:

- co-ordinating and conducting meetings
- collecting and banking levies, and obtaining insurance
- advising on asset management
- keeping the scheme's financial records.

Appointing a strata manager

Strata managers are appointed by the owners corporation at an annual general meeting.

For information visit **appointing strata managers and other workers (/housing-and-construction/strata/serving-on-a-committee/strata-manager-and-other-workers)**.

Do I need a strata manager?

No. There is no legal requirement for you to employ a professional strata manager. Most strata buildings (schemes) have one because the members on the strata committee are volunteers and strata managers help coordinate the affairs of lot owners.

Removing a strata manager

If you have an issue with a strata manager, you should talk to the owners corporation, who can take steps to remove them.

Owners corporations usually remove a strata manager if they feel the manager is not doing their job properly.

The owners corporation can:

- choose not to reappoint the strata manager at the end of their contract
- vote to remove the strata manager at the next general meeting, or
- apply to the Tribunal to remove the strata manager.

For information on how to remove a strata manager, visit **appointing strata managers and other workers (/housing-and-construction/strata/serving-on-a-committee/strata-manager-and-other-workers)**.

How to become a strata manager?

In NSW, you need a strata managing agent licence to oversee strata schemes. There are two licence classes, and training is required. Find out more about a **strata managing agent licence (https://www.fairtrading.nsw.gov.au/housing-and-property/property-professionals/licensing-certification-and-qualification/Licence-types-and-classes/strata-managing-agent-licence)**.

Building managers

What does a building manager do?

Building managers look after the buildings in a strata scheme.

They can help the owners corporation with:

- managing common property (for example, taking out bins and recycling)
- access to common property, including for tradespersons and non-residents, and
- maintaining and repairing common property.

Appointing a building manager

Building managers can be appointed at general meetings.

Before they are appointed, building managers must tell you if they:

- are connected with the original owner (developer)
- have any financial interest in the scheme.

Learn more about appointing building managers (/housing-and-construction/strata/serving-on-a-committee/strata-manager-and-other-workers#toc-appointing-a-building-manager)

Removing a building manager

An owners corporation can remove a building manager by not reappointing them, terminating their agreement at a general meeting, or by applying to the Tribunal.

For information on how to do this, visit **appointing strata managers and other workers (/housing-and-construction/strata/serving-on-a-committee/strata-manager-and-other-workers)**.

Difference between a strata manager, building manager and property manager

1. **A strata manager keeps everything running**

   A strata manager is delegated the most authority and unlike the others, they have the power to enforce the by-laws.

They are paid to keep everything in your strata running smoothly, and to help the owners corporation fulfil all their legal obligations, such as:

- co-ordinating AGMs and committee meetings
- preparing budgets and issuing levies to owners
- paying invoices and insurance.

A strata manager is often the primary contact for owners.

2 A building manager looks after common property

A building manager looks after the common property, such as:

- keeping lawns and gardens maintained
- doing minor repairs or organising them
- managing general safety around the complex, including fire safety, and sometimes doing condition reports.

A building manager is generally the primary contact for contractors working on-site.

3 A property manager looks after landlords and tenants

A property manager manages the rental lease for a landlord, such as organising inspections, move outs, bonds and evictions.

If the tenant raises any strata related issues, the property manager will take these up with the strata manager or owner.

A tenant typically has no direct dealings with the strata manager, who only represents the owners.

Property managers are the primary contact for a tenant.

Need more help?

Contact Fair Trading

If you have any further questions about strata, you can contact Fair Trading via phone or in-person at a Service NSW centre.

Phone:

13 32 20 (tel:13 32 20), 8:30am to 5pm, Monday-Friday

In person:

Find your nearest Service NSW Centre (https://www.service.nsw.gov.au/service-centre)

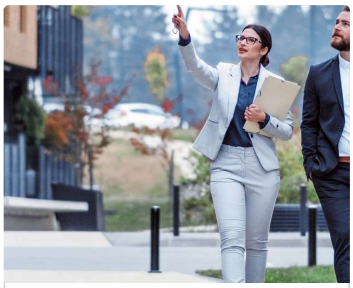
Related information

Popular pages

Advice for serving on a strata committee

Understand the roles, duties and responsibilities of the strata committee, and how they help with the day-to-day running of your building.

→



Appointing a strata or building manager

Strata managers and building managers help with the day-to-day running of a strata scheme.

→

Strata disputes and complaints

Understand what you can do if you have an issue with a strata manager or building manager in your scheme.

→

Advice for buying a strata property

What you need to know, and advice to consider, when buying a strata property.

→

Helpful links

Understanding by-laws → (/housing-and-construction/strata/living/by-laws)

Understand strata levies, finances and insurance → (https://www.nsw.gov.au/housing-and-construction/strata/living/levies-finances-insurance)

What is a strata roll? → (https://www.nsw.gov.au/housing-and-construction/strata/serving-on-a-committee/record-keeping-requirements#toc-strata-roll)

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